

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

Murder Reference No.140 of 2020
(The State *versus* Mubashir)

Crl. Appeal No.65436-J of 2020
(Mubashir *versus* The State)

P.S.L.A No.65434 of 2020
(Shafqat Abbas *versus* Mubashir, etc.)

P.S.L.A No.65435 of 2020
(Shafqat Abbas *versus* Zahoor, etc.)

JUDGMENT

Date of hearing: 07.05.2025.

Appellant by: Mr. Irfan Riaz Gondal, Advocate

State by: Mr. Muhammad Akhlaq, Deputy Prosecutor General.

Complainant by: Rai Bashir Ahmad, Advocate.

AALIA NEELUM, C.J.:- The appellant-Mubashir, son of Munir, Caste Sargana, resident of Mauza Rustam Sargana, Tehsil Shorkot, District Jhang, has assailed his conviction and sentence recorded by the learned Additional Sessions Judge, Shorkot, District Jhang vide judgment dated 21.11.2020 in a private complaint filed under sections 302, 324, 109, 34 PPC Police Station Waryam, Tehsil Shorkot, District Jhang, titled “**Shafqat Abbas vs. Mubashir, etc.,**” whereby the trial court convicted the appellant **under Section 302 (b) PPC** and sentenced to **Death as Tazir** for committing Qatl-e-Amd of Mehr Mukhtar, with the direction to pay compensation of Rs.3,00,000/- (rupees three lacs) as envisaged under section 544-A of Cr.P.C. and in case of default thereof, to undergo 06-months S.I further. However, the appellant was acquitted of the charge under section 324/34 PPC.

2. Feeling aggrieved by the trial court's judgment, Mubashir, the appellant, has assailed his conviction by filing the instant appeal bearing

Criminal Appeal No.65436-J of 2020. The trial court also sent **M.R. No.140 of 2020 (The State vs. Mubashir)** to confirm the death sentence awarded to the appellant, Mubashir, whereas the complainant filed **P.S.L.A No.65434 of 2020** against the acquittal of respondent No.1-Mubashir from charges under section 324/34 PPC and acquittal of respondent No.2-Muhammad Asif from charges under section 302/34 PPC. The complainant has also filed **P.S.L.A No.65435 of 2020** against the acquittal of respondents No.1 & 2, namely Zahoor and Tasadduq Hussain. All the matters arising from the same judgment of the trial court are being disposed of through a single judgment.

3. It would not be out of context to mention here that earlier, the appellant, Mubashir, along with his co-accused, Zahoor Hussain and Muhammad Asif, were convicted by the trial court vide judgment dated 28.04.2017, against which the appellant preferred an appeal bearing Crl. Appeal No. 58240-J/2017, while co-accused Zahoor Hussain and Muhammad Asif preferred an appeal bearing Crl. Appeal No. 41021/2017. The trial court also referred M.R. No.83/2018 for confirmation of the death sentence awarded to the appellant, Mubashir. However, vide judgment dated 07.09.2020 passed in Crl. Appeal No. 58240-J/2017 & Crl. Appeal No. 41021/2017 by the learned Division Bench of this Court, the matter was remanded back to the trial court for re-writing of the judgment, while giving its finding with respect to the acquittal or conviction of each accused person with reference to each offence.

4. Briefly, the prosecution story as alleged in the private complaint (Ex.PG) filed by Shafqat Abbas (PW-8)-the complainant is that on 18.06.2013, the complainant alongwith Sana-ur-Rehman (given up PW), Ijaz Ahmad (given up PW), Muhammad Rafique (PW-9), Mukhtar (given up being won over) and Mehr Mukhtar (the deceased) was sitting at the Dera of Mehr Mukhtar (the deceased); at about 04:00 p.m, Mubashir (the appellant), Asif (co-accused since convicted), both armed with rifle 44-bore, Zahoor (co-accused since acquitted) and Tasaddaq (co-accused since acquitted), both armed with pistols 30-bore came there; Zahoor raised lalkara to Mehr

Mukhtar (the deceased) to teach him a lesson for registration of criminal cases against them and for supporting their opponents; Zahoor also raised lalkara to his co-accused to commit murder of Mehr Mukhtar and also to kill whoever comes forward to rescue Mehr Mukhtar Ahmad; whereupon, Mubashir (the appellant) made first fire from his rifle 44-bore, which hit on the head of Mehr Mukhtar and went through and through; the complainant (PW-8), Muhammad Rafique (PW-9) and other PWs tried to restrain the accused persons from further firing; then, Muhammad Asif (co-accused since convicted) made fire with his rifle 44-bore, which hit on the belly of Muhammad Rafique (PW-9) and went through and through; the accused persons did not take care of their closely related (قریبی تعلقدار) namely Mukhtar; Zahoor also made fire from his pistol, which hit Mukhtar (given up being won over) on his right arm near elbow; then Tasaddaq shot two fires from his pistol, which hit near the knee joint; Mubashir (the appellant) shot a fire from his rifle, which hit on the left hand of Mukhtar (given up being won over); after that, all the accused persons fled away while making aerial firing.

The motive behind the occurrence was that 10/12 days before the occurrence, a FIR was registered against the accused Zahoor, brother of Mubashir (the appellant), father of Munir and Tasadduq, at Police Station Waryam and in said criminal case, Mahr Mukhtar (the deceased) was supporting the complainant party and due to that grudge, accused persons in connivance with each other, committed the occurrence. The complainant (PW-8), alongwith PWs, took Mehr Mukhtar and Mukhtar (given up being won over) to DHQ Hospital, Jhang by a car, while Muhammad Rafique (PW-9), the injured, was also shifted to DHQ Hospital, Jhang in a car by Rescue 1122; on reaching the hospital, Mehr Mukhtar succumbed to his injuries, whereas Muhammad Rafique and Mukhtar were admitted to the hospital in precarious condition.

5. Upon receiving information of the occurrence, Zahid Abbas S.I (CW-2)-the investigating officer reached DHQ Hospital, Jhang, where the complainant Shafqat Abbas (PW-8), got recorded his statement (Ex.PC) to

him (CW-2), who after incorporating police proceedings over it, sent the same to the police station through Qaisar Majeed 542/C for registration of FIR, whereupon Allah Ditta Nadeem 1515/H.C (PW-11), chalked out formal FIR (Mark-A). After registration of the case, the investigation of this case was first entrusted to Zahid Abbas, S.I. (CW-2). After that, the investigation of this case was entrusted to Tariq Mehmood, S.I (CW-3), who found the accused/appellant guilty, prepared a report under Section 173, Cr.P.C. while placing the name of the accused in column No.3 of the Challan and sent the same to the court of competent jurisdiction. Being dissatisfied with the result of the investigation, as the investigating officer was in league with the accused and did not investigate the matter properly, the complainant was constrained to file a private complaint (Ex. PG). After recording the cursory evidence of the complainant and having perused the record, all the accused persons were found connected with the commission of the offence, so they were summoned to face the charge. After that, the learned trial court formally charged the appellant and his co-accused on 17.02.2014, to which they pleaded not guilty and claimed trial. In support of his version, the complainant produced as many as eleven (11) witnesses, whereas the rest of the witnesses were summoned as court witnesses, i.e., CW-1 to CW-3.

6. After the closure of prosecution evidence, the appellant was also examined in terms of Section 342 Cr.P.C., wherein he neither opted to appear as his own witness in terms of Section 340(2) Cr.P.C., nor opted to produce evidence in his defence. In response to a particular question of why this case was against him and why the PWs deposed against him, the appellant made the following deposition: -

“The case against me is false and all the private PWs are inter se related and they had a motive to falsely implicate me. It was an unseen occurrence. The person who made fire behind the Khurli of the horses was not identified. My aunt was murdered by the complainant party and there was enmity of myself and that of my maternal uncle Muhammad Asif with the complainant party, therefore, they have falsely

involved us in this case. I am innocent. It is also in evidence that we all the brothers of co-share alongwith Mst. Sattan Mai. Zafar has filed suit for specific performance against Shafqat Abbas (complainant), his brothers and Mst. Sattan mai which is still sub-judice. I am innocent.”

7. After recording evidence and evaluating the available evidence on record, considering the arguments advanced by both sides, the learned trial court found that the prosecution's version was proved beyond a reasonable doubt, which resulted in the appellant's conviction, as well as the awarding of a sentence in the terms above.

8. We have carefully considered both sides' rival submissions and minutely reviewed the evidence on record.

9. In the instant case, the incident took place on 18.06.2013 at 04:00 p.m. at the Dera of Mehr Mukhtar (deceased) situated in the area of Mauza Rustam Sargana, falling within the territorial jurisdiction of Police Station Waryamwala, District Jhang. The incident was reported to the police by Shafqat Abbas (PW-8)-the complainant, through “Fard Bayyan” (Ex. PC) at DHQ Hospital, Jhang at 05:40 p.m. on 18.06.2013 to Zahid Abbas S.I. (CW-2)-the investigating officer, who incorporated police proceedings on the “Fard Bayyan” (Ex. PC) and sent the same to the police station through Qaiser Majeed 524/C (not cited as PW) for registration of formal FIR. Allah Ditta Nadeem 1515/HC (PW-11) chalked out a formal FIR (Mark-A) based on a written complaint (Ex.PC) at 06:45 p.m. on 18.06.2013. Allah Ditta Nadeem 1515/HC (PW-11) deposed during examination-in-chief that on 18.06.2013, Qaiser Majeed 524/C (not cited as PW) handed over to him the complaint (Ex. PC) upon which a formal FIR (Mark-A) was registered. The distance between the police station and the place of occurrence is 10 kilometers. According to Shafqat Abbas (PW-8)-the complainant, after the incident, he, along with his witnesses, brought Mehr Mukhtar Sargana and Mukhtar (given up being won over), son of Zulfiqar, to DHQ Hospital Jhang by car. Mehr Mukhtar Sargana died on reaching the hospital, while the

injured Muhammad Rafiq (PW-9) and Mukhtar, son of Zulfiqar, were in the hospital, struggling for life and death. Shafqat Abbas (PW-8)-the complainant also deposed during examination-in-chief as under: -

“I alongwith Ijaz Ahmad and Sana-ur-Rehman PWs took Mehr Mukhtar (deceased) and Mukhtar s/o Zulfiqar injured to the DHQ Hospital Jhang in a car-----As soon as, we reached DHQ Hospital Jhang, Mehr Mukhtar Ahmad succumbed to injury.” Shafqat Abbas (PW-8)-the complainant deposed during cross-examination that, **“It is correct that at the time of occurrence, our concerned police station was Waryam and police post was Rustam Sargana. The police post was Rustam Sargana is situated at a distance of about 3/4 kilometers away from the place of occurrence-----The deceased was shifted from place of occurrence towards hospital within 4/5 minutes. Himself stated that the vehicle by which deceased was shifted was already present at the Dera i.e. place of occurrence-----We had shifted the deceased to DHQ Hospital, Jhang.”**

Zahid Abbas S.I. (CW-2), investigating officer deposed during examination-in-chief that: -

“On 18.6.2013 I was posted as Incharge at P.P.Rustam Sargana. On the same day, I was present at Haveli Bahadur Shah. After receiving information about the occurrence I reached at DHQ hospital, Jhang where Shafqat Abbas complainant of this case appeared before me and got recorded his statement as Ex.P-C about the occurrence. He signed the same as a token of its correctness. I recorded the police proceedings on the back of complaint Ex-P-C.1. I sent the complaint Ex.P-C through Qaiser Majeed 542/C for registration of formal FIR. I examined the dead body and prepared the injury statement as Ex.P-M and inquest report Ex.P-N and Asad Abbas constable deputed for the autopsy of Mukhtar Ahmad s/o Khan Baig deceased.”

During the cross-examination, Zahid Abbas S.I. (CW-2), the investigating officer, was instructed by the trial court to answer the question after reviewing the police file. The relevant part of the cross-examination is as follows:

“Q. If it is true that on 18.06.2013 you were present for patrolling at Haveli Bahadur Shah, when Shafqat Abbas complainant appeared before you and made statement before you and you reproduced the entire statement, which is present FIR.

Ans. It is incorrect. I recorded the statement of Shafqat Abbas complainant at DHQ Hospital, Jhang.

At this stage, learned defence counsel requests that first case diary be ordered to be perused by the PW and then he shall make statement.

Order.

PW is directed to peruse the police file and give the answer.

Q. Is it effect that you recorded in your first case diary dated 18.06.2013 that Shafqat Abbas complainant appeared before you at Adda Haveli Bahadur Shah and got recorded his statement about the present occurrence and the same sent to the police station through Qaiser Majeed 542/C for registration of case?

Ans. It is correct. PW volunteered that it was written inadvertently and infact I recorded the statement of complainant Shafqat Abbas at DHQ hospital, Jhang and from there I had sent the complaint through Qaiser Majeed 542/C for registration of case and said fact is written in the police proceedings and also recorded this fact while concluding the first case diary.

It is incorrect to suggest that volunteer portion of my statement is false and I had made this statement at the instance of complainant as being tutored.”

The above-mentioned portion of Zahid Abbas S.I.'s (CW-2) deposition, which was volunteered, contradicts documentary evidence. The

inquest report (Ex. PN) reveals that it was prepared at “Mauza Rustam Sargana”. Whereas, as per the inquest report (Ex. PN), the time and date of receiving information of death was mentioned in column No. 3 at 4:22 p.m. on 18-06-2013. Zahid Abbas S.I. (CW-2), the investigating officer, deposed during cross-examination that: -

“Shafqat Abbas complainant met me outside the emergency ward of DHQ hospital, Jhang who made statement Ex.P-C and I started writing the same at about 5:20 p.m and completed it at 5:40 p.m. and on its basis the formal FIR was lodged.”

The above deposition suggests that the inquest report was prepared before recording Fard Bayyan (Ex. PC). The inquest report (Ex. PN) further reveals the names of the eyewitnesses, Mujahid Iqbal (PW-1) and Zahoor Ahmad (referred to as PW), in column No. 4 of the inquest report (Ex. PN). Mujahid Iqbal (PW-1) deposed during cross-examination that: -

“I came to know about the occurrence at about 05:00 pm. I reached the DHQ Hospital Jhang and not went to the “Dera”. I know if one has to go from Rustam Sargana to the DHQ Hospital Jhang, RHC Haveli Bahadar Shah falls in the way. I reached the DHQ Hospital Jhang at about 6.15 pm.”

On the last page, the names of Azmat Ullah and Abdul Rauf are recorded; however, the complainant had neither signed nor affixed his thumb mark at the end of the inquest report (Ex. PN). The column of a brief history of the inquest report (Ex. PN) further revealed that the dead body was lying on the ground. Whereas, as per the prosecution's case, soon after the incident, Shafqat Abbas (PW-8)-the complainant, after the incident, he, along with his witnesses, brought Mehr Mukhtar Sargana and Mukhtar (given up being won over), son of Zulfiqar, to DHQ Hospital Jhang by car. Mehr Mukhtar Sargana died on reaching the hospital. If, shortly after the incident, Mehr Mukhtar was shifted to the hospital, and on reaching the hospital, he expired. The lying of the dead body on the ground within the area of “Mauza Rustam Sargana”

raises questions about the mode and manner of the incident. Zahid Abbas S.I. (CW-2), the investigating officer, deposed during cross-examination that: -

“DHQ hospital Jhang is situated within the limit of P.S Kotwali Jhang. At that time I was not posted at police station Kotwali Jhang. I had not made entry of my arrival within the territorial limits of police station Kotwali.”

The deposition of Zahid Abbas S.I. (CW-2), the investigating officer, reveals that he prepared the inquest report (Ex. PN) at DHQ Hospital Jhang, as per the police proceeding (Ex. PC/1). The entry in column No. 1 indicates that it was prepared at “Mauza Rustam Sargana.” “Mauza Rustam Sargana” falls within the jurisdiction of the police post Rustam Sargana, police station Waryam, Tehsil Shorkot, District Jhang. At the end of the column of a brief history of the inquest report (Ex.PN) of Mehr Mukhtar it revealed that particulars of the FIR were mentioned, and the dead body was referred to DHQ Hospital Jhang for postmortem through Asad Abbas 786/C (PW-6). Dr. Asif Nawaz (PW-7) deposed during examination-in-chief that the probable time between injury and death was immediate. The inquest report (Ex.PN) was prepared at 4:22 p.m. on 18.06.2013. At the same time, the FIR was registered at 6:45 p.m. Zahid Abbas, S.I. (CW-2), the investigating officer, testified that after recording the Fard Bayyan (Ex. PC) at 5:40 p.m., he sent it to the police station for case registration. He then prepared the injury statement and the inquest report and sent the dead body to the mortuary of DHQ Hospital for a post-mortem examination. When the inquest report (Ex.PN) was prepared, the FIR had not been registered, and its details were not written on its face. However, at the end of the brief history column, the details of the FIR are mentioned. It creates doubt about the registration of the FIR. The inquest report (Ex.PN) contains details of the FIR; however, the doctor who conducted the post-mortem did not state that he had also attested the FIR. We have noted that Dr. Asif Nawaz (PW-7) said during his examination in chief that: -

“EXP-M is the injury statement & EXP-N is the inquest report of Mukhtar Ahmad s/o Khan Baig, both are endorsed by me.”

As per the post-mortem report (Ex. PL), the dead body of Mehr Mukhtar was received in the dead house at 08:45 p.m. on 18.06.2013, police documents were received at 08:40 p.m. on 18.06.2013, and the autopsy was conducted at 08:50 p.m. on 18.06.2013. Till 08:50 p.m. on 18.06.2013, the FIR was not registered. If the FIR had been registered by 8:50 p.m., the doctor would have stated in his testimony that he had also attested a copy of the FIR, along with the inquest report (Ex. PN) and the injury statement (Ex. PM). This also threw a cloud of doubt about the time when the incident took place and was reported to the police. Was it because no FIR had been registered at the time, as alleged by the prosecution, and after some consultations and deliberations, it came into existence? We also noted that the post-mortem examination report (Ex. PL) reveals that the probable time between death and post-mortem was about 5 hours. There is no plausible explanation as to why the post-mortem of the dead body was delayed for five hours. Delay in conducting post-mortem examination also leads to the conclusion that the F.I.R. was recorded with a delay, and the F.I.R. had not been recorded at the time at which it is claimed to have been recorded. This aspect of the matter is sufficient to cast doubt on the authenticity of the F.I.R. Looking at these facts, we believe that the prosecution has withheld the true genesis of the occurrence. Therefore, the possibility of the appellant's false implication in the alleged crime cannot be ruled out. In our opinion, the prosecution has failed to establish the charges framed against the appellant.

10. The recovery of rifle 44-caliber (P-4) on 19.09.2013 is of no consequence as a report of Forensic Science Laboratory, Punjab, Lahore (Ex. PU) is only to the effect that the weapon allegedly recovered from the accused/appellant was in mechanical operating condition. So, the recovery of the weapon from the accused appellant is of no consequence.

11. Now coming to the motive part of the prosecution, Shafqat Abbas (PW-8), the complainant, while appearing before the learned trial court, has deposed regarding the motive that,

“Motive behind the occurrence was that ten/twelve days prior to the occurrence, an FIR was lodged against Zahoor, brother and father of Mubashir accused and Tasadaq accused at P.S. Waryam and in the said criminal case, Mehr Mukhtar (deceased) had supported the complainant party.”

The prosecution did not present any witnesses to the police regarding the motive. Shafqat Abbas (PW-8), the complainant, admitted during cross-examination that: -

“It is correct that FIR No.158 of motive part of this case was registered at the instance of Akhtar s/o Sultan caste Sargana and the injured PW was Fakhar. It is also correct that I and Mukhtar deceased were not the witnesses of that case. Volunteered that the deceased had helped the complainant party in that case. -----
----It is correct that Akhtar, the complainant and Fakhar injured are neither related to me nor to the deceased. It is correct that a cross version was also registered in the above said case at the instance of Zahoor Ahmad s/o Haji Karam, the accused of the present case.-----
It is correct that in that case, Muzammil brother of accused Mubashir was injured.-----
--Mukhtar deceased was Patwari of consolidation of Mauza Kot Khaira.-----It is correct that case FIR No.348/2014 under section 337A(ii) PPC was registered against me, my brother Sarfraz and Sana-ur-Rehman PW. Volunteered that we all were declared innocent and the said case was cancelled.-----I know Haq Nawaz s/o Bahadar caste Sargana. Accused Asif is son-in-law of said Haq Nawaz Sargana. Accused Mubashir is son of the sister of accused Asif. One Zafar is also the son of the sister of Haq Nawaz. Mst. Sattan Mai is wife of my uncle. Said Mst. Sattan Mai is co-owner with us in Mauza Rustam Sargana. My four

brothers namely Amanullah, Muhammad Ilyas, Ejaz Ahmad and Asmatullah are also co-owners alongwith above said Mst. Sattan Mai. It is correct that above said Zafar had filed suit for specific performance against me, my brothers and Mst. Sattan Mai. It is also correct that the said suit is still pending adjudication.”

Similarly, criminal cases were registered against the deceased and the complainant party, Shafqat Abbas (PW-8), the complainant, admitted during cross-examination that: -

“Case FIR No.154/2011 u/s 440,148 & 149 PPC was registered at police station Shorkot City against Mukhtar deceased.-----It is correct that FIR No.30 dated 07.07.2003 u/s 161 PPC & 5/2/47 PCA at police station Anti-Corruption was registered against deceased Mukhtar. It is correct that the above said FIR was registered by Anti-Corruption police about taking of bribery.----- It is correct that FIR No.31/2003 u/s 161 PPC & 5/2/47 PCA police station Anti Corruption Jhang was registered against Mukhtar deceased regarding taking of bribery of Rs.200000/-. Volunteered that this case was also got registered by local MPA and deceased Mukhtar was acquitted of this case honourably.-----I do not remember that case FIR No.611/2009 u/s 440, 109 PPC was registered at police station Shorkot City. It is correct that above said case FIR was got registered against Sana-ur-Rehman at the instance of Mumtaz Khan s/o Silabat. Volunteered that this FIR was also registered due to influence of local MPA and the case was ended in compromise. ----- I cannot remember that a case FIR No.138/2014 P.S. Waryam and FIR No.73/2010 P.S. City Shorkot were registered against Sana-ur-Rehman.----- --It is correct that a case FIR No.701/2009 under section 376/511 PPC was registered at police station Shorkot City against Sana-ur-Rehman and deceased Mukhtar with the allegation that they had committed attempt to rape niece of Muhammad Afzal s/o Shahamand. Volunteered that deceased Mukhtar was a gentle man and the case was also cancelled after

investigation. ----- I know Haq Nawaz son of Bahadar caste Sargana. Accsued Asif is son-in-law of said Haq Nawaz Sargana. Accsued Mubashir is son of the sister of accused Asif. One Zafar is also the son of the sister of Haq Nawaz. Mst. Sattan Mai is wife of my uncle. Said Mst. Sattan Mai is co-owner with us in Mauza Rustam Sargana. My four brothers namely Amanullah, Muhammad Ilyas, Ejaz Ahmad and Asmatullah are also co-owners alongwith above said Mst. Sattan Mai. It is correct that above said Zafar had filed suit for specific performance against me, my brothers and Mst. Sattan Mai. It is also correct that the said suit is still pending adjudication.”

Tariq Mehmood S.I. (CW-3), investigating officer, deposed during cross-examination that: -

“It is in my knowledge that Khalid Sargana was MPA of the Illaga when occurrence took place. He is resident of Mouza Rustam Sargana i.e. place of occurrence. It also came into my knowledge that his elder brother Shahid Sargana is retired Tehsildar while another brother was A.C in those days. ----- It is in my knowledge that Khalid Sargana and his aforesaid brothers were sworn enemy of Mukhtar deceased.-----It is correct that Mukhtar deceased was a revenue patwari of grade-IV but it is not my knowledge that he used to participate in politics. On 16.7.2013 it came into my knowledge that 7/8 year prior one person of ‘Sadhal’ tribe was murdered and Mukhtar Hussain deceased had falsely involved accused Zahoor in that case and during investigation he was found innocent. It had also come into my knowledge that 02 years prior a dispute arose between sister of Zahoor accused namely Mst.Sakina Bibi and niece Sahib Bibi. Mukhtar Hussain deceased got registered a case against accused Zahoor u/s 13/20/65 of A.O. and during the investigation Zahoor accused was found innocent. It is correct that two months before the present occurrence Mukhtar Hussain got registered a case u/s 337-A2 PPC against Zahoor and his son Tasadaq.-----During

the interrogation of the parties it came into my knowledge that Mukthar Hussain deceased used to involve Zahoor accused falsely in every incident which happened in the area.”

Defence also relied on FIRs, Ex.DK/1 to Ex. DO. Criminal cases registered against the deceased, Asad Abbas. From the above, it is revealed that the deceased Mehr Mukhtar was a man of questionable character. Therefore, the evidence led by the prosecution in connection with motive is not sufficient for placing reliance on the testimonies of the witnesses. As the evidence on the motive part and suggestions put by the defence regarding the questionable character of the deceased and Shafqat Abbas (PW-8), the complainant suggested that the Investigating Officers, i.e., Zahid Abbas S.I. (CW-2), had deliberately concealed real facts. Zahid Abbas S.I. (CW-2), investigating officer, deposed during cross-examination that: -

“It is correct to suggest that in league with complainant party I am continuously making false statements.”

This again adversely affects the credibility of the prosecution's version. The trial court had already disbelieved the motive, which, as alleged, could not be considered against the appellant. Reliance is placed on the judgment of the Hon'ble Supreme Court of Pakistan titled “Mst. Sughra Begum and another v. *Qaiser Pervez and others*” (2015 SCMR 1142).

12. In view of the above circumstances, the conclusion I arrived at is that there is no credible evidence to establish that Shafqat Abbas (PW-8), the complainant, and Muhammad Rafique (PW-9), the injured witness, have brought facts before the court. The prosecution had badly failed to lead incriminating, corroborative/independent evidence to bring home the guilt of the accused-appellant. In this background, the benefit of doubt is to be extended in favour of the accused-appellant. In this background, the benefit of doubt is to be extended in favour of the accused-appellant. As per the dictates of law, the benefit of every doubt is to be extended in favour of the

accused. In the case of “Muhammad Akram v. The State” (2009 SCMR 230), it has been held as under: -

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

It is a golden principle of law that the Court should let off a hundred guilty but should not convict one innocent person. In the case of “Ayub Masih v. The State” (PLD 2002 SC 1048), it has been held by the Hon’ble Supreme Court of Pakistan that: -

“----It is hardly necessary to reiterate that the prosecution is obliged to prove its case against the accused beyond any reasonable doubt and if it fails to do so the accused is entitled to the benefit of doubt as of right. It is also firmly settled that if there is an element of doubt as to the guilt of the accused the benefit of that doubt must be extended to him. The doubt of course must be reasonable and not imaginary or artificial. The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which can not be ignored while dispensing justice in accordance with law. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”.

In simple words it means that utmost care should be taken by the Court in convicting an accused. It has further been held in “The State v. Mushtaq Ahmed” (PLD 1973 SC 418) that this rule is antithesis of haphazard approach or reaching a fitful decision in a case. It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic law and is

enforced rigorously in view of the saying of the Holy Prophet (P.B.U.H) that the “mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent”.

13. The upshot of the above discussion is that the prosecution had badly failed to bring home a charge against the appellant beyond any reasonable doubt; therefore, in the interest of safe administration of Criminal Justice, Crl. Appeal No.65436-J of 2020 filed by Mubashir, the appellant is **accepted in toto.** The conviction and sentence awarded by the learned Additional Sessions Judge, Shorkot vide judgment dated 21.11.2020 is **set aside** and the appellant is acquitted of the charge in a private complaint filed under sections 302, 324, 109, 34 PPC Police Station Waryam, Tehsil Shorkot, District Jhang, titled **“Shafqat Abbas vs. Mubashir, etc.,”** The appellant-Mubashir, son of Munir, is ordered to be **released forthwith**, if not required in any other case. **Murder Reference No.140 of 2020 is answered in the negative,** and the sentence of death awarded to Mubashir, son of Munir (convict) is **Not Confirmed.**

14. As far as **P.S.L.A No.65434 of 2020** against the acquittal of respondent No.1-Mubashir from charges under section 324/34 PPC and acquittal of respondent No.2-Muhammad Asif from charges under section 302/34 PPC and **P.S.L.A No.65435 of 2020** seeking conviction of the respondents No.1 & 2, namely Zahoor and Tasadduq Hussain, are concerned, for what has been discussed above in the light of prosecution evidence, medical evidence, and documentary evidence, the acquittal of respondents does not suffer from any illegality to call for interference of this Court with the impugned judgment. This court has also taken note of the settled principle of criminal jurisprudence that unless it can be shown that the lower court’s judgment is perverse or that it is entirely illegal. No other conclusion can be drawn except the guilt of the accused or misreading or non-reading of evidence resulting in a miscarriage of justice. Even otherwise, when a court of competent jurisdiction acquits the accused, the double presumption of innocence is attached to his case. The acquittal order cannot be interfered with, whereby an accused earns double presumption of innocence as held in

Muhammad Mansha Kausar v. Muhammad Ashqar and others (2003 SCMR 477). In this case, the prosecution has not been able to bring on record adequate incriminating evidence against respondents, which connects them with the alleged crime. The learned trial Judge has advanced valid and plausible reasons for recording acquittal in favor of respondents. The judgment of acquittal does not call for any interference. Consequently, we find no merit in these P.S.L.A No.65434 of 2020 & P.S.L.A. No.65435 of 2020, which are hereby dismissed as being without merits.

(Abher Gul Khan)
Judge

(Aalia Neelum)
Chief Justice

Approved for reporting

Judge

Chief Justice

*This judgment has been
dictated, pronounced on 7th
May, 2025, and signed after its
completion on 13th May, 2025.*

*Ikram**